

**PURCHASE AND SALE AGREEMENT
BETWEEN
SUNG THIK LIM AND THE CITY OF CHEYENNE**

THIS PURCHASE AND SALE AGREEMENT (the "Agreement") is made and entered into this ____ day of _____, 2018, by and between Sung Thik Lim ("Seller"), and the City of Cheyenne, Wyoming a municipality organized under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), sometimes individually referred to herein as "Party" and collectively as "Parties."

RECITALS

WHEREAS, the City wishes to secure, for purposes of constructing a municipal courthouse, the real property depicted at Exhibit A, attached hereto and incorporated herein, together with the Seller's rights, privileges, interests and appurtenances related to said real property including, but not limited to, all right, title and interest in and to adjacent streets, alleys, and rights of way, all of which is hereinafter referred to as the "Real Property"; and

WHEREAS, the Seller is the owner of the Real Property which is located at 308 West 17th Street in the City of Cheyenne, Laramie County, Wyoming, such Real Property consisting of approximately 0.33 acres (14,520 sq. ft.) of land, as more particularly depicted in Exhibit A; and

WHEREAS, the Seller is willing to sell to the City, and the City is willing to purchase from Seller the Real Property upon the terms and conditions hereinafter stated; and

NOW, THEREFORE, for good and valuable consideration, the receipt of which is hereby acknowledged, the Parties hereto agree as follows:

AGREEMENT

1. *Purchase and Sale.* Seller agrees to sell to the City and the City agrees to purchase from Seller:

1.1. The Real Property is depicted and described in Exhibit A attached hereto, and legally described as:

The East 44 feet of Lot 7, and all of Lot 8, Block 354, City of Cheyenne, County of Laramie, State of Wyoming.

1.2. All licenses, permits, and franchises issued by any governmental authority to or in favor of Seller and pertaining to the ownership, development or use of the Real Property, if any; and

1.3. All contract rights and general intangible rights pertaining to the ownership, development or use of the Real Property, if any; and

1.4. All improvements, structures and fixtures situated on the Real Property which will be conveyed in an "as is" condition without any representations or warranties relating to their physical condition and without ascribing any value to them; and

1.5. All fixtures, equipment and other personal property of every kind and nature now installed, located, situated or used in, on, or about, or in connection with the operation, use, or enjoyment of the Real Property, with the exception of a metal safe located in the basement of the Real Property, which Seller shall remove at their own expense prior to closing; and

1.6. All: (i) contracts or agreements affecting or relating to the Real Property, but only to the extent the City elects to take an assignment thereof; (ii) licenses, permits or similar documents; and (iii) plans, drawings, specifications, surveys, engineering reports, and other technical reports or descriptions of the Real Property, to the extent Seller has any in his possession.

1.7. Prior to closing, the Seller shall pay, when due and payable, all real property taxes and assessments asserted against the Real Property for the current year and for all prior years. All such taxes and assessments for the current year will be apportioned between the Parties on a pro rata basis as of the date of closing.

2. Purchase Price.

2.1. The purchase price to be paid by the City to Seller for the Real Property, and all of Seller's interest in said Real Property as described in Section 1 of this Agreement, is Two Hundred Seventy-Five Thousand Dollars and Zero Cents (\$275,000.00), (the "Purchase Price"), subject to proration and adjustments as provided herein.

(a) City shall submit Five Thousand Dollars (\$5,000.00) in earnest money to Seller upon mutual execution of this Agreement.

2.2. The Purchase Price shall be paid to Seller or, with written authorization, to Seller's designee, in full at the time of Closing, subject to pro-rations and adjustments, provided, however, that the City's duty to pay the Purchase Price at Closing is subject to the requirement that the Seller cooperates with the City in reporting the Purchase Price and the other terms and conditions of this Agreement to the Internal Revenue Service as may be required by law.

2.3. Prior to the date of Closing, Seller shall secure the release and discharge of all mortgages, liens, assessments, leases, rental agreements, advertising sign leases, if any, and other claims which encumber the Real Property. The City shall have the right to cancel this Agreement in the event Seller is unable or otherwise fails, neglects or refuses to convey good and marketable title to the City in accordance with the terms and conditions of this Agreement, subject only to the exceptions as set forth in the First American Title Insurance Company Title Insurance Commitment, attached hereto as Exhibit B.

3. Title.

3.1. Prior to Closing, the City shall have the right to obtain a Title Commitment for the Real Property (the "Title Commitment") at the City's sole cost and expense. In the event the Title Commitment shows that the Seller is not vested with good, marketable and insurable fee simple title to the Real Property, subject only to the exceptions as set forth in the First American Title Insurance Company Title Insurance Commitment, attached hereto as Exhibit B, or that the Real Property is subject to liens, encumbrances, taxes or assessments which will not be discharged prior to Closing,

the City shall have the right, in its sole and absolute discretion, to declare this Agreement null and void pursuant to Section 3.2 of this Agreement. Alternatively, the City may accept the Real Property subject to such matters as set forth in Exhibit B attached to this Agreement (collectively, the "Permitted Exceptions"). The condition of title as described in this Section 3.1 shall be the standard of marketable title that Seller shall deliver at the Closing. If Seller delivers such title and except for the "Permitted Exceptions" as set forth in Exhibit B, such title will be satisfactory and acceptable to the City under Sections 3.4 and 7.2 herein.

3.2. Within thirty (30) days after mutual execution of this Agreement, the City shall have the right to obtain a survey (the "Survey") of the Real Property, which Survey shall be prepared at the City's sole cost and expense. Seller shall grant to the City, and its employees and agents, access to the Real Property sufficient for the preparation of the Survey, including without limitation: (i) the actual dimensions of, and area within, the Real Property; (ii) the location of any easements, setback lines, encroachments, or overlaps thereon and the outside boundary lines of all improvements; (iii) all easements, setback lines, and other matters referred to on the Title Commitment; (iv) access to and from the Real Property from any publicly dedicated streets or roads; and (v) any areas within the Real Property that have been designated by any federal, state or other governmental agency or body as being subject to special, or increased flooding hazards. The Survey shall be prepared and certified by a surveyor licensed in the State of Wyoming and, if required by the City, shall be sufficient to allow issuance of an ALTA Extended Coverage Title Policy. The Surveyor shall prepare a metes and bounds or other legal description of the Real Property from information shown on the Survey and this description shall be used in the documents executed at Closing.

3.3. Within five (5) days following the execution of this Agreement, Seller shall deliver to the City the following:

(a) True, complete and legible copies of all documents referred to in the Title Commitment to the extent that any such document **has not been filed** for record in the office of the Laramie County Clerk and ex-officio register of deeds;

(b) True, complete and legible copies of all documents that are known to Seller, that are not referred to in the Title Commitment and that may affect the marketability of title to the Real Property;

(c) Any soils, geological, and engineering studies;

(d) Copies of any entitlements or permits relating to the development of the Property;

(e) True and complete copies or originals of any lease or occupancy agreements for any portion of the Property;

(f) Copies of environmental studies pertaining to the Real Property in the possession of Seller, if any;

(g) Any notices of violations of law received by Seller during the period of time that Seller has owned the Real Property, except those that may have been issued by the City;

(h) All mortgages, notes and loan documents for any mortgage which encumbers the Real Property on the date hereof, which mortgages, notes, and loan documents shall be discharged by the Seller prior to closing;

(i) Copies of any and all materials relating to pending or present litigation involving the Real Property.

3.4. The City shall have thirty (30) calendar days from the date of receipt of the Title Commitment referred to in Section 3.1 or thirty (30) calendar days following receipt of documents to be provided by the Seller pursuant to Section 3.3, whichever period is longer, in which to examine the same. If the City finds title to the Real Property to be other than as described in Section 3.1, hereof, the City shall, no later than the expiration of said period of thirty (30) calendar days, notify Seller in writing specifying the defect or defects; provided that, if the City fails to give Seller written notice of such defects before the expiration of said period of thirty (30) calendar days, the defects shown in the Title Commitment or in documents provided by Seller pursuant to Section 3.3 shall be deemed to be Permitted Exceptions and waived as title objections. The City may raise as additional objections, however, any defect first shown by any title update between the date of the Title Commitment and the Closing Date by giving Seller written notice of any such defect within ten (10) calendar days after the City first has notice of same. If the City has given Seller timely written notice of defects that render the title other than as required by Sections 3.1 and 3.3 of this Agreement ("Defects"), and only in the event that the Defects were the result of Seller's action or caused by Seller's failure to act, Seller shall use their best efforts to cause such Defects to be cured within ten (10) calendar days following receipt of such notice. In the event the Seller fails to eliminate such Defects, the City shall have the right to terminate this Agreement pursuant to Section 3.5. In the event the Seller creates any liens or encumbrances on the Real Property which are capable of being satisfied by the payment of money at the Closing, Seller shall be obligated to use the Purchase Price to cure the Defects.

3.5. The date for elimination of the Defects may be extended until Closing. In the event Seller does not eliminate any Defect prior to or at the Closing, as the same may be extended under the preceding provision, the City shall have the option of either: (i) closing and accepting the title "as is," without reduction in the Purchase Price and without claim against Seller therefore, or (ii) cancelling this Agreement. In the event of a Defect that was not caused by Seller's action or caused by Seller's failure to act, Seller's only responsibility shall be to assign to the City Seller's Title Insurance Policy or Seller's rights under Seller's Title Insurance Policy, whichever is applicable, and cooperate with the City in obtaining the assistance of Seller's title insurer to remove the Defect.

3.6. Seller shall not create any new exceptions to title and shall use their best efforts to prevent any other person or entity from creating new exceptions to title to the Real Property prior to Closing.

4. Inspection Period.

4.1. The City shall have until thirty (30) calendar days following the date of execution of this Agreement (the "Inspection Period") to make such physical, zoning, marketing and other investigations, tests and studies, including but not limited to soil tests and borings, Phase I environmental surveys, utility availability surveys, and confirmation of subdivision map

requirements and restrictions as the City may deem appropriate (the "City's Inspections"). The City's Inspections shall be at the City's sole cost and expense.

4.2. The City, at its option, may conduct, at its sole cost, such independent investigation and inspection of the Property as the City shall deem reasonably necessary to ascertain the environmental condition of the Property (the "City's Environmental Investigation"). The City assumes no responsibility or liability as a result of any inaccuracies arising in or from the City's Environmental Investigation, and makes no representations or warranties whatsoever regarding (i) the completeness of the City's Environmental Investigation, or (ii) the truth or accuracy of the City's Environmental Investigation. If Seller conducts any environmental testing of the Real Property subsequent to the date of this Agreement, Seller shall provide the City with a copy of any report promptly after its receipt of same. Seller shall have no obligation to remedy any environmental problem on the Real Property.

5. Termination.

In the event the City, in the City's sole and absolute discretion, determines that the development and construction of the municipal courthouse on the Real Property is not feasible or that any aspect of the City's Inspections or Environmental Investigation is not satisfactory either during or subsequent to the Inspection Period, the City shall have the right, at any time prior to the Closing, to terminate this Agreement by giving Seller written notice thereof (the "Termination Notice"), in which event, both Parties shall be released from all further obligations under this Agreement.

6. Conditions Precedent.

6.1. The City's obligation to close this transaction shall be subject to fulfillment of the following conditions precedent:

(a) Seller shall, at Seller's sole cost and expense, obtain releases, at or prior to Closing, for any and all liens or encumbrances affecting the Real Property caused by Seller's action or caused by Seller's failure to act as of the date of Closing, pursuant to the terms of this Agreement.

(b) Seller shall not be in default in its obligations under this Agreement.

(c) The Escrow Agent, First American Title, at the expense of the City, shall be prepared to deliver a Title Insurance Policy in a form acceptable to the City (the "Title Policy") insuring the City's title to the Real Property in accordance with the terms of this Agreement.

(d) An analysis of the Real Property, as directed by the Cheyenne City Council, shall demonstrate that the cost to purchase the Real Property, demolish the existing structure, remediate the site, and construct a new one-story building thereon, shall not exceed Nine Million Dollars (\$9,000,000.00). Said analysis shall be completed within thirty (30) days of the mutual execution of the Agreement

(e) In the event this analysis shall not be completed as set forth above, the City shall pay an additional One Thousand Dollars (\$1,000.00) earnest money to Seller for each thirty (30) day period, or any portion thereof, during which the analysis is not yet complete.

6.2. In the event any of the foregoing conditions precedent are not fulfilled as of Closing (or earlier date where specified otherwise), then the City shall have the option of either: (i) waiving the condition and closing "as is" without reduction in the Purchase Price or claim against Seller therefore provided that Seller assigns to the City all of Seller's right, title and interest to the title insurance policy it obtained when it acquired the Property, or (ii) cancelling this Agreement by written notice to Seller.

7. Seller's Representations and Warranties.

7.1. Seller hereby represents and warrants to the City that the following are true statements as of the date of this Agreement and shall be true as of the date of Closing, and Seller agrees to deliver a certificate confirming that the following representations and warranties are true as of the date of the Closing.

(a) Seller is an individual and has full power and authority to sell and convey the Real Property and to execute this Agreement and such other documents described herein to be executed by Seller.

(b) Seller now has and will have at Closing good, marketable and indefeasible title in fee simple to the Real Property subject to the Permitted Exceptions and no Party, except as herein set forth, has or shall have any right in, or to acquire, the Property.

(c) At Closing, the Real Property shall be free and clear of all encumbrances except the Permitted Exceptions as set forth in Article 3 of this Agreement.

(d) At Closing, the Real Property shall be free from any and all actions, suits, claims, assessments or proceedings pending or, to the knowledge of Seller, threatened that could materially adversely affect the ownership, operation, or maintenance of the Real Property or Seller's ability to perform hereunder.

(e) To the best of Seller's knowledge, the Property and Seller are not currently in violation of or subject to: (i) any existing, pending or threatened investigation or inquiry by any governmental authority; or (ii) any remedial obligations under any Applicable Laws pertaining to health or the environment (hereinafter sometimes collectively called "Applicable Environmental Laws") including, without limitation, the Comprehensive Environmental Response, Compensation, and Liability Act of 1980, as amended ("CERCLA") and the Resource Conservation and Recovery Act of 1976, as amended ("RCRA"). Seller shall have no obligation to remove or take any action to cure or remediate any environmentally hazardous material from the Real Property if any environmentally hazardous material is found on the Real Property.

(f) Seller does not have knowledge of any hazardous substances or solid wastes that have been disposed of or otherwise released on the Real Property, except for asbestos,

black mold, and pigeon excrement and carcasses. The terms "hazardous substance" and "release" shall have the meanings specified in CERCLA, and the terms "solid waste" and "disposal" or "disposed" shall have the meanings specified in RCRA; provided, to the extent that the laws of the State of Wyoming establish a meaning for "hazardous substance," "release," "solid waste," or "disposal" that is broader than that specified in either CERCLA or RCRA, such broader meaning shall apply.

(g) There are no parties in possession of any portion of the Real Property, whether as lessees, tenants at sufferance, trespassers or otherwise.

7.2. Seller shall not intentionally cause any of the representations and warranties contained herein to become materially incorrect, nor authorize any action which would do so. If subsequent to the execution of this Agreement and on or before Closing, Seller nonetheless has knowledge that any of the representations and warranties set forth herein have become incorrect in any respect (a "Discrepancy"), Seller shall promptly notify the City, in writing, of the occurrence of such event. The City shall have the right to approve or disapprove any such Discrepancy, which approval or disapproval shall be given by written notice delivered to Seller within ten (10) days prior to the Closing for the City to evaluate the effect of such Discrepancy. If the City waives such Discrepancy, and elects to acquire the Real Property, Seller's representations and warranties contained herein shall be deemed to have been made as of the Closing, subject to the waived Discrepancy. If the City disapproves of the Discrepancy, and Seller fails to cure same, then upon written notice thereof to Seller, this Agreement shall be terminated, and all rights and obligations of the Parties hereunder shall terminate.

7.3. Except for the representations of Seller set forth in Section 7.1, that shall survive for one (1) year from the Closing, the express representations and warranties made in this Agreement shall merge into any instrument or conveyance delivered at Closing and shall not survive Closing.

8. *Risk of Loss.*

The Property shall be conveyed to the City in substantially and materially the same condition as on the date this Agreement is executed by the City, ordinary wear and tear excepted, free of all tenancies or occupancies. Risk of loss shall remain with Seller until the deed is delivered. In the event of damage by any means prior to closing, in an amount not more than ten percent (10%) of the total Purchase Price, Seller shall be obligated to repair the same prior to deed delivery, unless the City waives such requirement. In the event such damage cannot be repaired within said time or if such damage shall exceed such sum, this Agreement shall be voidable at the option of the City. If the City elects to carry out this Agreement despite such damage, the City shall be entitled to all the insurance proceeds resulting from such damage.

9. *Default Provisions.*

9.1. In the event of the wrongful failure or refusal of the City to close this transaction after sixty (60) days written notice, Seller shall be entitled to those remedies as may be provided by law including, but not limited to, forfeiture of earnest money.

9.2. In the event of Seller's failure to close in accordance with the terms and provisions of this Agreement for sixty (60) days after written notice, the City, at its option and as the City's sole and exclusive remedy for default of Seller, shall have the right either to terminate this Agreement or seek specific performance of the Seller's obligations hereunder.

10. *Prorations.*

All pro-ratable items, if any, shall be prorated as of the date of Closing.

11. *Closing Costs and Expenses.*

At Closing, the City shall pay the cost of the Title Insurance Policy to be issued to the City and the cost of the Survey, and all recording fees necessary to record instruments received by the City at closing. Each Party shall pay that Party's attorney's fees, if any. Seller shall pay the recording costs with respect to documents necessary to clear title at Closing and all instruments received by Seller at closing.

12. *Closing.*

12.1. The closing of this transaction shall be held on the first business day occurring thirty (30) calendar days after the satisfaction of all the conditions of Closing (the "Closing Date"), or earlier upon agreement of the Parties. First American Title, Cheyenne, Wyoming, shall prepare the closing documents.

12.2. At Closing, Seller shall deliver:

(a) A warranty deed duly executed and acknowledged in proper form for recording conveying to the City good and indefeasible fee simple title in and to the Real Property, subject only to the Permitted Exceptions;

(b) An assignment of all rights appurtenant to the Real Property, if any, as provided in Section 1, above;

(c) A title affidavit and a mechanic's lien affidavit;

(d) An affidavit of exclusive possession;

(e) An affidavit pursuant to Internal Revenue Code Section 1445(b)(2) with respect to Seller's status as non-foreign persons;

(f) A certificate, or other document as acceptable to the City, confirming Seller's authority to sell the Real Property;

(g) Such other documents as are usually required to insure the City's title.

12.3. At closing, the City at the City's expense shall receive an Owner's Title Insurance Policy ("Owner's Title Policy"), in a form acceptable to the City, issued by First American Title Insurance Company in the full amount of the Purchase Price, insuring the City's indefeasible fee simple title to the Real Property, subject only to the Permitted Exceptions and the printed exceptions contained in the standard form of the Owner's Title Insurance Policy.

13. *Brokers.*

The Parties each represent and warrant to the other that no Party to this transaction shall be responsible for the payment of any compensation or commission due any real estate agent, broker, salesman or finder unless that Party has engaged the real estate agent, broker, salesman, or finder in writing. If a claim for compensation or commission in connection with this transaction is made by any agent, broker, salesman or finder claiming to have dealt through or on behalf of one of the Parties hereto, such Party shall indemnify, defend and hold harmless the other Parties hereunder from and against all liabilities, damages, claims, costs, fees and expenses whatsoever (including reasonable attorney's fees and court costs at all trial and appellate levels) with respect to said claim for compensation or commission. Anything to the contrary notwithstanding, the provisions of this paragraph shall survive the Closing and any cancellation or termination of this Agreement.

14. *Assignability.*

Neither Party shall have the right to assign this Agreement without the express written consent of the other Party.

15. *Access.*

The City, and the City's agents and contractors, shall have the right during the term of this Agreement to enter upon the Real Property, and adjacent areas as provided in this Agreement, at any time for purposes of making investigations, tests and studies provided that the City shall indemnify, defend, and hold harmless Seller from and against all liabilities, damages, claims, costs, fees and expenses whatsoever (including reasonable attorney's fees and court costs at all trial and appellate levels) for bodily injury, death, or physical damage to the Real Property caused by any such investigation test or study. The foregoing indemnification shall survive the Closing and any cancellation or termination of this Agreement.

16. *Notices.*

Any notices required or permitted to be given under this Agreement shall be delivered by hand or mailed by certified or registered mail, return receipt requested, or overnight delivery service in a postage prepaid envelope, and addressed as follows:

If to the City: City of Cheyenne
 2101 O'Neil Avenue
 Cheyenne, WY 82001
 ATTN: City Engineer

With copy to: City Attorney

If to the Seller at: Sung Thik Lim
c/o Charles West
#1 Properties
6106 Yellowstone Rd.
Cheyenne, WY 82001

With copy to: David Rho, Esq.
1234 Wilshire Blvd., #411
Los Angeles, CA 90017

17. *Operation of the Property.*

17.1. During the period between the date hereof and the Closing, Seller shall:

(a) Keep the Real Property in substantially the same repair and condition as of the date hereof, but excluding damages to the Property caused by the City's Inspection or the City's use of the Property;

(b) Comply with all state and municipal laws, ordinances, regulations, and orders relating to the Real Property;

(c) Comply with all the terms, conditions, and provisions of all liens, mortgages, agreements, insurance policies, and other contractual arrangements relating to the Real Property, make all payments due thereunder, and suffer no default therein;

(d) Without written approval of the City, neither negotiate nor enter into any new contract or modify any existing contract affecting the use or operation of the Real Property which cannot be terminated without charge, cost, penalty, or premium on or before the Closing;

(e) Promptly notify the City in writing if any material change occurs in the occupancy or conditions affecting the Real Property; and

(f) Provide the City and its representatives, employees, and agents full and complete access during normal business hours, to the Real Property, and adjacent areas as provided in this Agreement.

18. *Miscellaneous.*

18.1. This Agreement shall be construed and governed in accordance with the laws of the State of Wyoming. Except for enforcement of the terms and conditions of this Agreement as between the Parties, the City reserves all defenses and immunities under the Wyoming Governmental Claims Act, W.S. § 1-39-101, *et seq.*, and other applicable constitutional and statutory provisions of the State of Wyoming. All legal proceedings shall occur in the First Judicial District, sitting at Laramie County, Wyoming.

18.2. In the event any term or provision of this Agreement be determined by appropriate judicial authority to be illegal or otherwise invalid, such provision shall be severed and the remainder of this Agreement shall be construed to be in full force and effect.

18.3. In construing this Agreement, the singular shall be held to include the plural, the plural shall be held to include the singular, the use of any gender shall be held to include every other and all genders, and captions and paragraph headings shall be disregarded.

18.4. All the exhibits attached to this Agreement are incorporated in, and made a part of, this Agreement.

18.5. This Agreement constitutes the entire understanding and agreement between the Parties, and there are no understandings, agreements, representations or warranties except as specifically set forth herein.

18.6. This Agreement may not be changed, altered or modified except by an instrument in writing signed by the Party against whom enforcement of such change would be sought.

18.7. This Agreement shall be binding upon the Parties hereto and their respective successors and assigns.

18.8. The failure of any Party at any time or times to require performance of any provision hereof shall in no manner affect its right at a later time to enforce the same. No waiver by any Party of any condition, or of any breach of any covenant, agreement, representation or warranty contained in this Agreement, in any one or more instances, shall be deemed to be or construed as a further or continuing waiver of any such condition or breach or waiver of any other condition or of any breach of any other covenant, agreement, representation or warranty.

18.9. If the final date of any period provided for herein for the performance of an obligation or for the taking of any action falls on a Saturday, Sunday or banking holiday, then the time of that period shall be deemed extended to the next day which is not a Sunday, Saturday or banking holiday. All time periods expiring on a specific date or period herein shall be deemed to expire at 5:00 p.m. Mountain Standard or Mountain Daylight Time, as applicable.

18.10. This Agreement may be executed in any number of counterparts, each of which, when so executed and delivered, shall be deemed an original, but such counterparts together shall constitute but one agreement.

18.11. During the term of this Agreement, Seller shall not list the Real Property for sale, rent or exchange or otherwise offer the Real Property for sale, rent or exchange. Seller shall have the right to disclose this Agreement to any lending institution.

[SIGNATURE PAGE FOLLOWS]

EXHIBIT A

SUPPORTING DOCUMENTATION PENDING

WILL BE AVAILABLE PRIOR TO

MAY 7, 2018 FINANCE COMMITTEE MEETING

EXHIBIT B

ALTA Plain Language Commitment Form

INFORMATION

The Title Insurance Commitment is a legal contract between you and the Company. It is issued to show the basis on which we will issue a Title Insurance Policy to you. The Policy will insure you against certain risks to the land title, subject to the limitations shown in the Policy.

The Company will give you a sample of the Policy form, if you ask.

The Policy contains an arbitration clause. All arbitrable matters when the Amount of Insurance is \$2,000,000 or less shall be arbitrated at the option of either the Company or you as the exclusive remedy of the parties. You may review a copy of the arbitration rules at <http://www.alta.org/>.

The Commitment is based on the land title as of the Commitment Date. Any changes in the land title or the transaction may affect the Commitment and the Policy.

The Commitment is subject to its Requirements, Exceptions and Conditions.

THIS INFORMATION IS NOT PART OF THE TITLE INSURANCE COMMITMENT. YOU SHOULD READ THE COMMITMENT VERY CAREFULLY.

Reference: Sung Thik Lim/City of Cheyenne
308 West 17th Street, Cheyenne, WY 82001

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YOU SHOULD READ THE COMMITMENT VERY CAREFULLY.

If you have any questions about the Commitment, contact:

First American Title Insurance Company

245 Storey Blvd, Cheyenne, WY 82009

Phone: (307)635-1181 - FAX (866)213-7015 - Email: pschliske@firstam.com

For Title questions call: Pamela A. Schliske

For Closing questions call: **Shandi Vasquez** at (307)635-1181 or email FA-East@firstam.com

For Real Estate questions contact: **Chuck West** at **#1 Properties**

TITLE INSURANCE COMMITMENT

BY

First American Title Insurance Company

AGREEMENT TO ISSUE POLICY

We agree to issue a policy to you according to the terms of the Commitment. When we show the policy amount and your name as the proposed insured in Schedule A, this Commitment becomes effective as of the Commitment Date shown in Schedule A.

If the Requirements shown in this Commitment have not been met within 90 DAYS after the Commitment Date, our obligation under this Commitment will end. Also, our obligation under this Commitment will end when the Policy is issued and then our obligation to you will be under the Policy.

Our obligation under this Commitment is limited by the following:

The Provisions in Schedule A.

The Requirements in Schedule B-I.

The Exceptions in Schedule B-II.

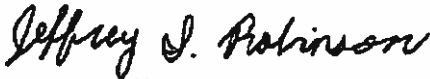
The Conditions on Page 3 .

This Commitment is not valid without SCHEDULE A and Sections I and II of SCHEDULE B.

First American Title Insurance Company



Dennis J. Gimore
President



Jeffrey S. Robinson
Secretary

Issued by: First American Title Insurance Company
Address: 245 Storey Blvd, Cheyenne, WY 82009

CONDITIONS

1. DEFINITIONS

(a) "Mortgage" means mortgage, deed of trust or other security instrument. (b) "Public Records" means title records that give constructive notice of matters affecting your title according to the state statutes where your Land is located.

2. LATER DEFECTS

The Exceptions in Schedule B - Section II may be amended to show any defects, liens or encumbrances that appear for the first time in the public records or are created or attach between the Commitment Date and the date on which all of the Requirements (a) and (c) of Schedule B - Section I are met. We shall have no liability to you because of this amendment.

3. EXISTING DEFECTS

If any defects, liens or encumbrances existing at Commitment Date are not shown in Schedule B, we may amend Schedule B to show them. If we do amend Schedule B to show these defects, liens or encumbrances, we shall be liable to you according to Paragraph 4 below unless you knew of this information and did not tell us about it in writing.

4. LIMITATION OF OUR LIABILITY

Our only obligation is to issue to you the Policy referred to in this Commitment, when you have met its Requirements. If we have any liability to you for any loss you incur because of an error in this Commitment, our liability will be limited to your actual loss caused by your relying on this Commitment when you acted in good faith to:

Comply with the Requirements shown in Schedule B - Section I

or

Eliminate with our written consent any Exceptions shown in Schedule B - Section II.

We shall not be liable for more than the Policy Amount shown in Schedule A of this Commitment and our liability is subject to the terms of the Policy form to be issued to you.

5. CLAIMS MUST BE BASED ON THIS COMMITMENT

Any claim, whether or not based on negligence, which you may have against us concerning the title to the Land must be based on this Commitment and is subject to its terms.

SCHEDULE A

1. Commitment Date: March 22, 2018 at 5:00 p.m.
2. Policy (or Policies) to be issued:
 - a. ALTA Owners Policy 1402.06 (06-17-06) \$275,000.00

Proposed Insured:
City of Cheyenne
3. Fee interest in the land described in this Commitment is owned, at the Commitment Date, by Sung Thik Lim.
4. The Land referred to in this Commitment is described as follows:

The East 44 feet of Lot 7 and All of Lot 8, Block 354, in the City of Cheyenne, Laramie County, Wyoming.

SCHEDULE B - I

REQUIREMENTS

The following requirements must be met:

- a. Pay the agreed amounts for the interest in the land and/or the mortgage to be insured.
- b. Pay us the premiums, fees and charges for the policy.
- c. You must tell us in writing the name of anyone not referred to in this Commitment who will get an interest in the land or who will make a loan on the land. We may then make additional requirements or exceptions.
- d. Documents satisfactory to us creating the interest in the land and/or the mortgage to be insured must be signed, delivered and recorded.

1. Warranty Deed from Sung Thik Lim to City of Cheyenne.

NOTE: A Statement of Consideration is required with each transfer of title in the State of Wyoming.

The Company may provide a sample of a conveyance, which if properly completed and executed, would meet this requirement. Seller and Buyer should each consult legal counsel regarding its use. Should Seller and Buyer require additional language to be contained in the sample conveyance in order to comply with the terms of their agreement that language must be provided to Company or a substitute conveyance must be presented for execution at closing.

2. Payment of the 2nd installment of the property tax for the year 2017.

SCHEDULE B - II**EXCEPTIONS FROM COVERAGE**

Any policy we issue will have the following exceptions unless they are taken care of to our satisfaction.

1. Any facts, rights, interests, or claims that are not shown in the Public Records but that could be ascertained by an inspection of the Land or by making inquiry of the persons in possession of the Land.
2. Easements, claims of easements or encumbrances that are not shown in the Public Records.
3. Any encroachment, encumbrance, violation, variation, or adverse circumstance affecting the Title including discrepancies, conflicts in boundary lines, shortage in area, or any other facts that would be disclosed by an accurate and complete land survey of the Land, and that are not shown in the Public Records.
4. Any lien, or right to a lien, for services, labor or material theretofore or hereafter furnished, imposed by law and not shown in the Public Records.
5. (a) Unpatented mining claims; (b) Reservations or exceptions in patents or in Acts authorizing the issuance thereof; (c) Water rights, claims or title to water, whether or not the matters excepted under (a), (b) or (c) are shown by the Public Records.
6. Any right, title or interest including any claim thereto, to minerals, including but not limited to ores, metals, coal, lignite, oil, gas, uranium, clay, rock, sand, gravel or other common variety materials, whether or not shown by the public records.
7. The lien of real estate taxes or assessments imposed on the Title by a governmental authority that are not shown as existing liens in the records of the County Treasurer or in the Public Records.

Taxes for the year 2017.

NOTE: Taxes for the year 2017 appear to be in the amount of \$4,297.79, Account No. 1-1001-0354-00070 according to the County Treasurer. The first installment is due and payable September 1, delinquent November 10. The second installment is due and payable March 1 of the following year, delinquent May 10. The first installment is \$2,148.90, and PAID, and the second installment is \$2,148.89, and DUE.

8. The terms and conditions of Resolution: ;

Granted To:	Board of Historic Preservation
For:	Historic Preservation
Recorded:	November 7, 1996
Recording Information:	Book 1437, Page 400

The First American Corporation
First American Title Insurance Company



First American Title

Privacy Information

We Are Committed to Safeguarding Customer Information

In order to better serve your needs now and in the future, we may ask you to provide us with certain information. We understand that you may be concerned about what we will do with such information - particularly any personal or financial information. We agree that you have a right to know how we will utilize the personal information you provide to us. Therefore, together with our subsidiaries we have adopted this Privacy Policy to govern the use and handling of your personal information.

Applicability

This Privacy Policy governs our use of the information that you provide to us. It does not govern the manner in which we may use information we have obtained from any other source, such as information obtained from a public record or from another person or entity. First American has also adopted broader guidelines that govern our use of personal information regardless of its source. First American calls these guidelines its Fair Information Values.

Types of Information

Depending upon which of our services you are utilizing, the types of nonpublic personal information that we may collect include:

- Information we receive from you on applications, forms and in other communications to us, whether in writing, in person, by telephone or any other means;
- Information about your transactions with us, our affiliated companies, or others; and
- Information we receive from a consumer reporting agency.

Use of Information

We request information from you for our own legitimate business purposes and not for the benefit of any nonaffiliated party. Therefore, we will not release your information to nonaffiliated parties except: (1) as necessary for us to provide the product or service you have requested of us; or (2) as permitted by law. We may, however, store such information indefinitely, including the period after which any customer relationship has ceased. Such information may be used for any internal purpose, such as quality control efforts or customer analysis. We may also provide all of the types of nonpublic personal information listed above to one or more of our affiliated companies. Such affiliated companies include financial service providers, such as title insurers, property and casualty insurers, and trust and investment advisory companies, or companies involved in real estate services, such as appraisal companies, home warranty companies and escrow companies. Furthermore, we may also provide all the information we collect, as described above, to companies that perform marketing services on our behalf, on behalf of our affiliated companies or to other financial institutions with whom we or our affiliated companies have joint marketing agreements.

Former Customers

Even if you are no longer our customer, our Privacy Policy will continue to apply to you.

Confidentiality and Security

We will use our best efforts to ensure that no unauthorized parties have access to any of your information. We restrict access to nonpublic personal information about you to those individuals and entities who need to know that information to provide products or services to you. We will use our best efforts to train and oversee our employees and agents to ensure that your information will be handled responsibly and in accordance with this Privacy Policy and First American's Fair Information Values. We currently maintain physical, electronic, and procedural safeguards that comply with federal regulations to guard your nonpublic personal information.

Information Obtained Through Our Web Site

First American Financial Corporation is sensitive to privacy issues on the Internet. We believe it is important you know how we treat the information about you we receive on the Internet.

In general, you can visit First American or its affiliates' Web sites on the World Wide Web without telling us who you are or revealing any information about yourself. Our Web servers collect the domain names, not the e-mail addresses, of visitors. This information is aggregated to measure the number of visits, average time spent on the site, pages viewed and similar information. First American uses this information to measure the use of our site and to develop ideas to improve the content of our site.

There are times, however, when we may need information from you, such as your name and email address. When information is needed, we will use our best efforts to let you know at the time of collection how we will use the personal information. Usually, the personal information we collect is used only by us to respond to your inquiry, process an order or allow you to access specific account/profile information. If you choose to share any personal information with us, we will only use it in accordance with the policies outlined above.

Business Relationships

First American Financial Corporation's site and its affiliates' sites may contain links to other Web sites. While we try to link only to sites that share our high standards and respect for privacy, we are not responsible for the content or the privacy practices employed by other sites.

Cookies

Some of First American's Web sites may make use of "cookie" technology to measure site activity and to customize information to your personal tastes. A cookie is an element of data that a Web site can send to your browser, which may then store the cookie on your hard drive.

FirstAm.com uses stored cookies. The goal of this technology is to better serve you when visiting our site, save you time when you are here and to provide you with a more meaningful and productive Web site experience.

Fair Information Values

Fairness We consider consumer expectations about their privacy in all our businesses. We only offer products and services that assure a favorable balance between consumer benefits and consumer privacy.

Public Record We believe that an open public record creates significant value for society, enhances consumer choice and creates consumer opportunity. We actively support an open public record and emphasize its importance and contribution to our economy.

Use We believe we should behave responsibly when we use information about a consumer in our business. We will obey the laws governing the collection, use and dissemination of data.

Accuracy We will take reasonable steps to help assure the accuracy of the data we collect, use and disseminate. Where possible, we will take reasonable steps to correct inaccurate information. When, as with the public record, we cannot correct inaccurate information, we will take all reasonable steps to assist consumers in identifying the source of the erroneous data so that the consumer can secure the required corrections.

Education We endeavor to educate the users of our products and services, our employees and others in our industry about the importance of consumer privacy. We will instruct our employees on our fair information values and on the responsible collection and use of data. We will encourage others in our industry to collect and use information in a responsible manner.

Security We will maintain appropriate facilities and systems to protect against unauthorized access to and corruption of the data we maintain.